

TENTATIVE RULINGS

June 01, 2026

	Case Name	Tentative
101	2024-01394927 Lopez vs. City of Santa Ana	Motion for Summary Judgment and/or Adjudication Defendant City of Santa Ana’s motion for summary judgment as to Plaintiff Juanita Lopez’s Second Amended Complaint is granted. Defendant’s request for judicial notice is granted. Defendant’s evidentiary objections are all overruled. “[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law.” (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) “A prima facie showing is one that is sufficient to support the position of the party in question.” (<i>Id.</i> at p. 851.) A defendant moving for summary judgment satisfies his or her initial burden by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. (Code Civ. Proc., § 437c, subd. (p)(2).) The scope of this burden is determined by the allegations of the plaintiff’s complaint. (<i>FPI Development v. Nakashima</i> (1991) 231 Cal.App.3d 367, 381-382 [pleadings serve as the outer measure of materiality in a summary judgment motion]; 580 <i>Folsom Associates v. Prometheus Development Co.</i> (1990) 223 Cal.App.3d 1, 18-19 [defendant only required to defeat allegations reasonably contained in the complaint].) A cause of action cannot be established if the undisputed facts presented by the defendant prove the contrary of the plaintiff’s allegations as a matter of law. (<i>Brantley v. Pisaro</i> (1996) 42 Cal.App.4th 1591, 1597.) Alternatively, a moving defendant can show that a cause of action cannot be established by submitting evidence, such as discovery admissions and responses, that plaintiff does not have and cannot reasonably obtain evidence to establish an essential element of his cause of action. (<i>Aguilar v. Atlantic Richfield Co.</i>, <i>supra</i>, 25 Cal.4th at pp. 854-855; <i>Union Bank v. Superior Court</i> (1995) 31 Cal.App.4th 573, 590 [finding moving defendant may show plaintiff’s lack of evidence by factually devoid discovery responses after plaintiff has had adequate opportunity for discovery]; see <i>Scheidung v. Dinwiddie Constr. Co.</i> (1999) 69 Cal.App.4th 64, 80-81 [finding <i>Union Bank</i> rule only applies where discovery requests are broad enough to elicit all such information].) Once a defendant meets its prima facie showing, the burden shifts to the plaintiff to show by reference to specific facts the existence of a triable issue as to that affirmative defense or cause of action. (<i>Aguilar v. Atlantic Richfield Co.</i>, <i>supra</i>, 25 Cal.4th at p. 850.) Plaintiff alleges a single cause of action for violation of Gov’t Code, § 835 against Defendant. Gov. Code, § 835 provides that a public entity is liable for injury caused by a dangerous condition of its property if “Plaintiff establishes that the property was in a dangerous condition at the time of the injury, that the injury was proximately caused by the dangerous condition, that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred, and that either...[a] negligent or wrongful act or

omission of an employee of the public entity within the scope of his employment created the dangerous condition; or... [t]he public entity had actual or constructive notice of the dangerous condition under Section 835.2 a sufficient time prior to the injury to have taken measures to protect against the dangerous condition.”

Gov. Code, § 835.2 provides that a “public entity had actual notice of a dangerous condition within the meaning of subdivision (b) of Section 835 if it had actual knowledge of the existence of the condition and knew or should have known of its dangerous character,” and a “public entity had constructive notice of a dangerous condition within the meaning of subdivision (b) of Section 835 only if the plaintiff establishes that the condition had existed for such a period of time and was of such an obvious nature that the public entity, in the exercise of due care, should have discovered the condition and its dangerous character.”

Plaintiff alleges that the dangerous condition is a water meter vault located across the street from 811 S. Sullivan St., Santa Ana, CA 92704. (UMF 7.) She alleges that she fell into the hole of the vault when the cover was left open while the City was doing construction. (UMF 10.) Plaintiff additionally claims that the trees adjacent to the walkway were not properly trimmed and blocking the streetlights reducing her visibility. (Plaintiff’s Response to UMF 10.)

Defendant submits evidence that there were no calls for service regarding the subject water meter vault from 10/15/23 to 11/1/23 and that the City of Santa Ana has no record of construction taking place during this time. (UMF 12, 13, Villela Decl., ¶¶ 7-10, Santa Decl., ¶¶ 5-9; Thomas Decl., ¶¶ 7-9; Plaintiff Depo at pgs. 18-22.) Additionally, the City’s records reflect no water meter reads at the subject vault or notations or work orders for the subject vault during this time. (UMF 14-15; Chavez Decl., ¶¶ 6-9.)

Importantly, Defendant establishes that there is no evidence that the City knew or should have known of the alleged dangerous condition. (UMF 17-18.) There is no evidence as to how long the cover to the water meter vault was missing. (UMF 21.)

In opposition, Plaintiff does not argue or set forth any evidence that an employee of Defendant was negligent. Rather, she suggests that the fact that Plaintiff and her boyfriend recall witnessing work being done in the vicinity of the area establishes actual or constructive notice. (Lopez Decl., ¶ 6, Mateo Decl., ¶ 6.)

The Court finds Plaintiff’s evidence lacking. The fact that Plaintiff and her boyfriend witnessed work crews nearby does not establish a triable issue of material fact. There is no evidence that these workers were employed by the City. There is no evidence that the City knew about this work. There is also no evidence that shows how long the work was happening. Similarly, Plaintiff’s evidence that the trees impacted Plaintiff’s visibility, without more does not establish a dangerous condition. Plaintiff does not submit any evidence that the City was aware that the trees needed to be trimmed or how long the trees were overgrown, or that this (as opposed to the open vault) caused Plaintiff’s injuries.

Defendant has shown that Plaintiff does not have and cannot reasonably obtain evidence to establish the existence of a dangerous condition. Plaintiff in opposition, fails to meet her burden to show the existence of a triable issue. As a result, the motion for summary judgment is granted.

Defendant is ordered to give notice.